

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 23-02
BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

**COMPLAINANT’S MOTION TO FILE UNDER SEAL
EXHIBIT A TO COMPLAINANT’S MOTION CHALLENGING THE
CONFIDENTIALITY OF CERTAIN DOCUMENTS OF RESPONDENTS**

Pursuant to Rule 5 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (the “Rules”), 46 C.F.R. Section 502.5, and the Protective Order entered by the Presiding Officer in this case on July 28, 2023, *see* Dkt. 20 (the “Protective Order”), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant”), by and through its undersigned attorneys, respectfully moves for an order permitting Complainant to file under seal with the Presiding Officer an unredacted copy of Exhibit A (“Exhibit A”) to Complainant’s Motion Challenging Respondents’ Confidentiality Designation of Certain Documents (the “Confidentiality Challenge Motion”) and file on the public docket of this case a redacted copy of Exhibit A.

As discussed in Complainants’ Confidentiality Challenge Motion, Complainant believes there is no proper basis for Respondents’ confidentiality designation of the materials reflected in Exhibit A. Nevertheless, consistent with the requirements of the Protective Order in this case, Complainant seeks by the instant motion leave to file Exhibit A under seal pending the Presiding Officer’s decision on the Confidentiality Challenge Motion.

Dated: July 8, 2024

Respectfully submitted,

HUTH REYNOLDS LLP

A handwritten signature in black ink, appearing to read "Lee Hill", is written over a horizontal line.

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Certificate of Service

I hereby certify that I have this day caused to be served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing a copy to their counsel of record listed below:

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Dated: July 8, 2024

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J. Lee Hill

*For Complainant 20230930-DK-Butterfly-1,
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